

December 22, 2005



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 11252
(NINETH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109.)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials, described in paragraph 6 of this special permit, in certain non-DOT specification metal aerosol containers. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(a)(3)(v) in that an alternative testing procedure is not authorized except as specified herein; § 173.306(a)(3)(ii) in that a non-DOT specification container is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of CCL Container dated August 18, 2005, submitted in accordance with § 107.109 and an e-mail dated September 16, 2005.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hazardous materials as authorized in DOT Specification 2P containers/Aerosols, flammable or Aerosols, non-flammable, (each not exceeding 1 L capacity)	Division 2.1 or 2.2	UN1950	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification one-piece, impact-extruded, cylindrical aluminum container conforming with Advanced Monobloc's drawings on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). The container assembly consists of a laminated pouch which is contained within the aluminum can. The product to be expelled is inside the pouch, which is surrounded by nonflammable compressed gas. Maximum equilibrium pressure of the container at 130°F may not exceed 160 psig. Container must conform with DOT Specification 2P (§ 178.33) except as follows:

§ 178.33-2 Type and size.

(a) Containers must be seamless with crimped end closure.

(b) * * *

§ 178.33-5 Material.

(a) Material must be aluminum alloy 1060, 1100, or 1070.

(b) * * *

§ 178.33-7 Wall thickness.

(a) Minimum wall thickness: no less than 0.010 inch.

§ 178.33-8 Tests.

(a) One container out of every lot produced must be pressure tested to destruction and may not burst below 240 psig. The tested container must be complete with the ends assembled. If the test container fails the burst test, the lot must be rejected. However, an additional 5 randomly selected containers may be burst tested to qualify that lot. If any of the additional test containers fail the burst test, that lot must be rejected.

(b) Each 2,500 containers or less, successively produced as a batch or part thereof, must constitute a lot. All containers constituting a lot must be of like material, size, design, construction, finish, and quality.

§ 178.33-9 Marking.

(a) Applies except that each container must be marked "DOT-SP 11252" instead of "DOT-2P".

b. TESTING - Prescribed packagings must be leak tested as follows:

(1) For the purpose of leak testing, each 2,500 containers or less, successively filled with product must constitute a lot.

(2) In lieu of testing each container, a total of 60 containers, selected randomly from the beginning, middle, and the end of a lot must pass the following leak test:

Each container must be pressurized to a minimum of 50 psig and then heated until the temperature of the contents reaches 130°F for a minimum of 1 hour, before cooling to room temperature and having the pressure rechecked. For a successful test the pressure drop may not be greater than 5 psi.

(3) If any test container fails the above prescribed leak test, the entire lot must be rejected. However, individual containers in that lot may be accepted by successfully passing the following leak test:

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The fill pressure and temperature of the remaining containers in the lot must be recorded. The containers are then heated until the temperature of the contents reaches 130°F. Containers must be maintained at 130°F for a minimum of 1 hour before cooling to room temperature or fill temperature whichever is lower. The container pressure is then checked and compared with the fill pressure. Any container which indicates a pressure drop greater than 5 psig must be rejected.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or change are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Containers must be shipped in strong outside packaging as prescribed in § 173.301(a) (9).

d. Each outside packaging must be marked "INSIDE CONTAINERS COMPLY WITH PRESCRIBED REGULATIONS".

e. Packagings permanently marked 'DOT-E 11252', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 11252'.

f. Shipping papers displaying 'DOT-E 11252' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo only aircraft, and passenger aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard motor vehicle each cargo vessel or aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR ' ' 171.15 B Immediate notice of certain hazardous materials incidents, and 171.16 B Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Torker", is written over a faint circular stamp.

for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Pipeline and Hazardous Materials Safety
Administration, Department of Transportation, Washington, D.C.
20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at
http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit
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PO: kah